

1. Legal Strength Rating

Medium – Two of the five legal arguments are valid and supported by statute (Karnataka Electricity Supply Code § 12.2 and Consumer Protection Act 2019 § 2(11)/49). However, the claim for consequential income loss is speculative and the Citizen-Charter/penalty arguments are not enforceable by the consumer directly, so the overall strength is only moderate.

2. Confidence Meter

55

3. Draft Complaint

[CONDITIONAL – to be filed only after collecting the evidence listed below]

BEFORE THE KARNATAKA STATE CONSUMER DISPUTES REDRESSAL COMMISSION, BENGALURU

Complaint U/s 49 of the Consumer Protection Act, 2019

Complainant: Ravi Kumar

Address: [full Bengaluru address]

Contact: [mobile / e-mail]

Opposite Party: Bangalore Electricity Supply Company Ltd. (BESCOM)

Registered Office: BESCOM Central Office, K.R. Circle, Bengaluru – 560 001

Facts

1. The complainant is a consumer bearing account No. _____, service connection at the above address.
2. On 03-03-2026 a total power failure occurred; written complaint No. 456789 was lodged the same day.
3. BESCOM's own Supply Code (Clause 12.2) obliges restoration within the prescribed period; no force-majeure event has been pleaded.
4. Despite repeated assurances, supply was restored only on 10-03-2026 (7 days).
5. The prolonged outage, while the licensee was on notice, constitutes gross negligence and deficiency in service.
6. The complainant works from home; the outage caused demonstrable inconvenience and loss of productivity.

Relief Sought

- a. ■ _____ as compensation for deficiency in service (toward hardship and productivity loss);
- b. ■ _____ as litigation cost;
- c. Any further relief the Hon'ble Commission deems fit.

Place: Bengaluru

Date: ____/____/2026

[Signature]

4. Applicable Laws (India)

- Consumer Protection Act, 2019 – Sections 2(11) “deficiency”, 2(42) “service”, 49 (pecuniary jurisdiction)
- Karnataka Electricity Supply Code, 2020 – Clause 12.2 (restoration obligation)
- Electricity Act, 2003 – Section 57 (general duty to supply; penalty provision enforceable only by KERC, not individual consumers)

5. Identified Weaknesses

- No documentary proof of the exact restoration date/time
- No evidence of actual income loss (invoices, tax returns, client contracts)
- Complaint copy does not show category of fault or BESCOM's response
- No force-majeure clarification; BESCOM may claim external fault

6. How to Strengthen Your Case

1. Obtain from BESCOM call-centre the outage log and restoration date (RTI if refused).
2. Collect neighbour statements/affidavits confirming 7-day outage.
3. Compile three years' income-tax returns, recent client invoices, and bank statements to substantiate earnings.
4. Print e-mail/SMS trail of assurances received from BESCOM.
5. File a brief online complaint on KERC's “Public Grievance Portal” to create an official acknowledgment.
6. Retain one electricity bill showing timely payment (establishes consumer status).

7. Evidence Checklist

- Copy of complaint No. 456789 dated 03-03-2026

- BESCOM response/closure remarks (download from portal)
- Outage restoration message or lineman's signature on dated logbook
- RTI reply / call-centre ticket showing restoration timestamp
- Salary slips / audited income proof for last two financial years
- Client work orders cancelled/delayed due to outage
- Witness affidavits from two neighbours
- Latest paid electricity bill